

had been adjudged a ward of the juvenile court, or that he was incarcerated pursuant to lawful penal processes, to constitute “prisoner” within the meaning of section 844.6.

As to section 52.1(n), the County argues that this provision is a substantive amendment that does not apply retroactively to conduct occurring in 1999-2000. However, the Court need not reach this issue since the application of immunity under section 844.6 has not been sufficiently established on the face of the FAC.

The County finally argues that Plaintiff’s Bane Act claim fails because it alleges only “mere inaction,” including failures to report, failures to act, and omissions. The County contends these omissions do not satisfy the Bane Act’s requirement of interference by threat, intimidation, or coercion. This argument is without merit.

In the FAC, Plaintiff alleges that “Defendants unlawfully and wrongfully used, or employed others to wrongfully use, threats, intimidation, harassment, violence, retaliation, and coercion over the Plaintiff’s person, to which the Plaintiff had no relief except to submit[.]” (FAC ¶ 73.) It further alleges that a reasonable person “would have been intimidated, threatened, or coerced by the actions and/or attempted actions of Defendants.” (*Id.* at ¶ 74.)

More significantly, the FAC incorporates the underlying sexual assault allegations. (*Id.* at ¶ 65.) It alleges that County employees Baptist and Glass committed repeated nonconsensual assaults including groping, forcibly placing Plaintiff’s hand on their genitals, throwing soap to force exposure, and attempting to force oral sex. (*Id.* at ¶ 20.) These are not omissions, but rather they are intentional physical acts. The FAC alleges that these employees acted within the course and scope of County employment. (*Id.* at ¶ 17.)

The FAC also alleges affirmative concealment and cover-up of the sexual assaults. It alleges that during Plaintiff’s time at the facility, Defendants “engage[d] in unlawful tactics by, without limitation, ignoring, concealing, and ultimately suppressing the Plaintiff’s complaints of being sexually abused.” (*Id.* at ¶ 67.) It alleges that Plaintiff “was threatened, intimidated, retaliated against, and coerced into not reporting or underreporting Defendants’ sexually abusive and harassing acts by Defendants’ own intimidating, threatening, coercive, and humiliating conduct.” (*Id.* at ¶ 68.) These allegations describe affirmative conduct, not passive failure to act. At the pleading stage, these allegations are sufficient to allege interference by threat, intimidation, or coercion. **OVERRULED**

5.

CASE #	CASE NAME	HEARING NAME
CVPS2505858	DOE K.C., AN INDIVIDUAL VS DOE 1, A PUBLIC ENTITY	MOTION TO STRIKE 1ST AMENDED COMPLAINT OF JOHN DOE K.C., AN INDIVIDUAL

Tentative Ruling: Granted and denied in part.

Plaintiff granted leave to file 2nd Amended Complaint only solely to add an express carve-out making clear those treble-damages allegations are asserted only against non-public

entity defendants. 2nd Amended Complaint must be filed within 5 days of this order becoming final.

Responding party to provide notice pursuant to CCP 1019.5.

This is a revival action under CCP § 340.1 for damages arising from childhood sexual assault at a county-operated juvenile detention facility. (First Amended Complaint [“FAC”] ¶¶ 15, 20, 71.) Plaintiff John Doe K.C. (“Plaintiff”), born September 8, 1985, alleges that from approximately November 1999 through March 2000, while he was a minor confined at Indio Juvenile Hall (“IJH”) in Indio, California, he was subjected to repeated acts of childhood sexual assault, molestation, and harassment by County employees, including Defendants Baptist, Glass, and others. (First Amended Complaint [“FAC”] ¶¶ 16, 20.)

Plaintiff further alleges that Defendant Silva, a schoolteacher at the facility, and other employees knew of the abuse but took no remedial action, failed to report it as mandated reporters under the Child Abuse and Neglect Reporting Act, and actively covered it up in a concerted effort to hide evidence of systemic sexual abuse at IJH. (*Id.* at ¶¶ 21, 29.)

On August 8, 2025, Plaintiff filed his original Complaint against Doe 1 and Does 2 through 100. On February 20, 2026, Plaintiff filed a Doe Amendment substituting Defendant County of Riverside (the “County”) in place of the fictitiously named Doe 1.

On April 9, 2026, Plaintiff filed the operative First Amended Complaint (“FAC”), asserting five causes of action against the County and individual Doe defendants: (1) failure to summon medical care; (2) negligence; (3) breach of mandatory statutory duties; (4) intentional infliction of emotional distress (“IIED”); and (5) violation of the Bane Act (Civ. Code § 52.1).

In the instant motion, the County concurrently moves to strike portions of the Plaintiff’s FAC, arguing that the requests for treble damages and punitive damages are improper under California law, specifically citing Gov. Code § 818’s immunity from punitive damages against public entities. It contends the damages sought are not recoverable and the allegations are irrelevant or improperly pled as per procedural law.

In opposition, Plaintiff argues that the motion to strike should be denied, asserting procedural flaws such as the County’s failure to quote verbatim the challenged portions. On the merits, Plaintiff maintains that the damages sought are permissible and that statutory provisions do allow for recovery of some damages against a public entity, thus the references to treble damages should remain in the complaint.

In reply, the County responds that the motion to strike should proceed on its merits, dismissing Plaintiff’s procedural arguments as unconvincing. The County reasserts that all requests for treble damages are fundamentally punitive and thus barred by section 818. Furthermore, it argues that the previous cases cited by Plaintiff do not support recovery under the circumstances, emphasizing that the immunity provided under the Government Code protects the County from these claims.

Motion to Strike

Under CCP §§ 435 and 436, the court may strike irrelevant, false, or improper matter from a pleading, or matter not drawn or filed in conformity with the laws of California. A motion to strike is the proper vehicle to remove a damages request that is barred by law as to the moving defendant. (CCP § 436(a).) However, a motion to strike is not a substitute for a demurrer when the moving party's true argument is that the underlying cause of action fails to state facts sufficient to constitute a claim; that challenge belongs to demurrer. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 529.)

The County moves to strike portions of the FAC seeking past, present, and future damages and treble damages against the County, including allegations in paragraphs 35–37, 45, 56, 61–64, 75–76, 78, and the prayer for relief. It argues that the challenged relief is not recoverable against a public entity, is duplicative, or is otherwise improper. The County further argues that damages allegations tied to the first, fourth, and fifth causes of action should be stricken if those claims fail, and that treble damages against it are barred.

Procedural Objection Under CRC Rule 3.1322(a)

As an initial matter, Plaintiff argues that the motion should be denied because the County failed to quote verbatim the portions of the FAC sought to be stricken, as required by CRC Rule 3.1322(a). The County responds that it identified each challenged paragraph by number and by category of damages, which is sufficient where the motion targets entire paragraphs.

CRC Rule 3.1322(a) provides that a “notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense.” (CRC Rule 3.1322(a) [emphasis added]; *Miszkewycz v. Cnty. of Placer* (2024) 99 Cal.App.5th 67, 73.)

Here, the County's notice identifies the challenged matter by paragraph number and by category of damages, specifically the treble damages references in FAC ¶¶ 45, 56, 64, 78, and Prayer paragraph 3, as well as paragraphs 35–37, 61–62, and 75–76 seeking past, present, and future damages. Because the motion targets entire numbered paragraphs, the rule's exception applies and paragraph number identification is sufficient for notice purposes. (*Miszkewycz, supra*, 99 Cal.App.5th at 75.) Although the notice does not quote verbatim each challenged sentence, the targeted material is ascertainable without uncertainty, and the parties have fully briefed the issues. On this record, any technical noncompliance is not fatal.

Damages Tied to Allegedly Defective Causes of Action

The County argues that Plaintiff “may not recover damages for causes of action subject to dismissal,” including the first cause of action for failure to summon medical care, fourth cause of action for IIED, and fifth cause of action for the Bane Act. (Def.'s Mot. 5:18–27.) Plaintiff responds that this argument improperly uses the motion to strike as a vehicle to challenge the sufficiency of causes of action, which is the province of a demurrer.

Paragraphs 35 and 36 (first cause of action), paragraphs 61 and 62 (fourth cause of action), and paragraphs 75 and 76 (fifth cause of action) allege ordinary compensatory and non-economic damages, including past and future physical and emotional injury, medical expenses, lost earnings, incidental expenses, and non-economic damages. (FAC ¶¶ 35, 36, 61, 62, 75, 76.) These damages are derivative of the underlying claims, not independently strikeable. Since the the demurrers to the first, fourth, and fifth causes of action are overruled, the predicate for striking these damages allegations no longer exists. DENIED as to FAC paragraphs 35, 36, 61, 62, 75, and 76.

Treble Damages Under CCP § 340.11 (Paragraphs 37, 45, 56, 64, and Prayer ¶ 3)

The County argues that treble damages under CCP § 340.11(b)(1) are punitive in nature and barred against a public entity by Gov. Code § 818.

Plaintiff concedes that treble damages under section 340.11 are foreclosed against the County. (Pl.'s Opp. 6:25–28, fn. 1.) Plaintiff states that he “does not seek treble damages against [the County] under § 340.11 as *Los Angeles Unified School Dist. v. Superior Court* (2023) 14 Cal.5th 758 forecloses such damages” and that such damages are sought against “Does 2 through 100, who are not identified to be ‘public entities.’” (*Id.*) However, the FAC as drafted does not contain that limitation. Paragraphs 37, 45, 56, and 64 each seek treble damages against “Defendants” generally, and the FAC defines “Defendants” collectively to include the County. (FAC ¶¶ 9, 45.) The FAC elsewhere demonstrates that Plaintiff knew how to carve out public entities when desired: paragraph 79 and the corresponding punitive damages prayer are expressly limited to non-public entity defendants only. (*Id.* at ¶ 79.) In contrast, the treble damages allegations contain no such carve-out. (*Id.* at ¶¶ 37, 45, 56, 64, 78, Prayer paragraph 3.)

Treble damages under the childhood sexual assault scheme are primarily punitive and therefore barred against a public entity. (*X.M. v. Sup. Ct.* (2021) 68 Cal.App.5th 1014, 1022; see also *Los Angeles Unified Sch. Dist. v. Sup. Ct.* (2021) 64 Cal.App.5th 549, 552.) Thus, section 340.11 treble damages are not legally viable against the County as a matter of law, and Plaintiff’s FAC, as currently pleaded, does not limit to non-public entity defendants, the proper disposition is to strike these allegations only as against the County.

The motion to strike is therefore be GRANTED in part as to FAC paragraphs 37, 45, 56, 64, and Prayer paragraph 3 insofar as they seek treble damages under section 340.11 from the County. The strike is limited to Defendant County of Riverside only. Leave to amend is granted solely to add an express carve-out making clear those treble-damages allegations are asserted only against non-public entity defendants.

Treble Damages Under Civ. Code § 52 (Paragraph 78 and Prayer paragraph 3)

The County argues that treble damages sought in paragraph 78 under Civ. Code § 52(a) related to the Bane Act are likewise punitive in nature, and therefore, barred against a public entity under Gov. Code § 818.

Civ. Code § 52(a) authorizes recovery for Bane Act violations, specifying that a plaintiff may receive “actual damages . . . up to a maximum of three times the amount of actual

damage but in no case less than four thousand dollars (\$4,000), and any attorney's fees[.]” (Civ. Code § 52(a).) The County's position rests on the premise that such treble damages do not serve a compensatory purpose but are purely punitive.

Plaintiff counters that statutory treble damages can still be pursued against public entities when these damages serve nonpunitive purposes. Citing cases like *Los Angeles County Metropolitan Transportation Authority v. Superior Court* (2004) 123 Cal.App.4th 261 (“MTA”), *Kelly v. Yee* (1989) 213 Cal.App.3d 336, 342, and *Wiley v. Kern High School District* (2024) 107 Cal.App.5th 765, Plaintiff argues that treble damages are permissible as long as they are not aimed primarily to punish the County.

In *MTA*, the court held that the \$4,000 statutory minimum in Civ. Code § 52(b)(2) serves a compensatory purpose—it ensures plaintiffs receive meaningful recovery when actual damages are difficult to quantify or prove. (*MTA*, *supra*, 123 Cal.App.4th at 273.) Because that minimum fills a gap in compensation rather than punishing the defendant, it is not barred by Gov. Code § 818. However, the treble damages multiplier in section 52(a) operates differently. It scales in proportion to actual damages already proven, which raises the question whether it is punitive rather than compensatory. Thus, the exception recognized for section 52(b)(2) does not automatically extend to section 52(a), but neither has the County demonstrated that treble damages under section 52(a) are categorically punitive so as to be barred by Gov. Code § 818. DENIED

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509978	BREWER VS CRYSTAL CHRYSLER DODGE JEEP RAM	HEARING RE: DEFENDANT'S MOTION TO COMPEL DEPOSITION

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday August 11, 2026 at 8:30 a.m. in Department PS2.

Plaintiff Benjamin Brewer brings this Song-Beverly action regarding a 2024 Jeep Wrangler that has defects to the electric battery, engine, transmission and electrical system. The complaint, filed 6/23/25, asserts: (1) Civil Code § 1793.2(d); (2) Civil Code § 1793.2(b); (3) Civil Code § 1793.2(a)(3); (4) breach of implied warranty of merchantability; (5) negligent repair; and (6) fraudulent concealment. Trial is not set.

Defendants move to compel Plaintiff's deposition to take place within 15 days. On 11/20/25, Defendants served a notice of deposition for deposition to take place on 2/3/26. Plaintiff's counsel emailed unavailability and objected. Defendants followed up asking for alternative dates, but Plaintiff failed to provide any dates.

In an untimely opposition, Plaintiff contends that he is seeking to dismiss the claims and requests the court continue the hearing 30 days to allow the dismissal or deem the motion as moot.

Motion to Compel Deposition

Service of a proper deposition notice is sufficient to compel a party to appear, testify and produce records in their possession without a subpoena. (Code Civ. Proc., §